

EVICTIION PROCESS — IN

For: John Doe

Understanding the process reduces fear and helps you prepare. This is a general timeline — your specific dates are on your summons.

1. Notice to Quit (*Varies*)

Landlord serves written notice to vacate (10 days for nonpayment, 30 days for no-fault).

2. Notice of Claim Filed (*After notice*)

Landlord files small claims eviction. You receive the Notice of Claim with a hearing date.

3. Attend Hearing (*On the hearing date*)

YOU ARE HERE. Appear at the small claims hearing. Bring lease, payment records, and evidence.

4. Hearing (*On hearing date*)

Judge hears both sides. You may present defenses and counterclaims.

5. Judgment (*Day of hearing*)

If you lose, the court issues a possession order.

6. Writ of Restitution (*After judgment*)

Sheriff may execute the writ. Tenant must vacate.

IMPORTANT: This timeline is a general guide. Your specific deadlines and procedures depend on your state, county, and case type. Read your summons carefully. If you do not understand something, ask the court clerk or a legal aid attorney.

IMPORTANT: This document is provided for informational purposes only. It is not legal advice. If you need legal advice, contact a licensed attorney. You are responsible for your own case and what you say in court.